

Karan Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 12 April 2018 · WRIT-C No. 13330 of 2018 · **Writ disposed; installment plea relegated to Executive Engineer under clause 6.14.**

HEADNOTE

A writ against a Section 135 recovery citation was disposed by pointing the consumer to compounding under Section 152 of the Electricity Act, 2003 and to an installment application before the Executive Engineer under clause 6.14 of the Electricity Supply Code, 2005, to be considered in accordance with law within three weeks; recovery to abide that order.

FACTUAL SUMMARY

The petitioner, Karan Singh, was proceeded against by the respondent electricity department under Section 135 of the Electricity Act, 2003. An assessment was made and a recovery citation issued. In this writ petition before the Allahabad High Court he sought leave to discharge the demand in installments rather than a single payment, while the theft proceeding remained on foot.

HOLDING-UNITS

HOLDING-UNIT · EA2003::152

compounding of theft proceedings

HOLDING

Where the electricity department has proceeded against a consumer under Section 135 of the Electricity Act, 2003, the statutory remedy is to seek compounding under Section 152 of that Act. ¶ 1

HOLDING-UNIT · UP-2005::6.14

installment facility

HOLDING

A request to pay an assessed electricity recovery in installments is to be made to the Executive Engineer under clause 6.14 of the Electricity Supply Code, 2005; the Engineer shall consider it in accordance with law, and recovery proceedings abide that order. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE SECTION 135 ASSESSMENT AND WHETHER COMPOUNDING UNDER SECTION 152 SHOULD BE GRANTED

The Court identified compounding as the available remedy but did not examine the theft case or the assessment. ¶ 1

NOT DECIDED — WHETHER INSTALLMENT FACILITY UNDER CLAUSE 6.14 SHOULD ACTUALLY BE ALLOWED

Left to the Executive Engineer to consider in accordance with law within three weeks. ¶ 1